

23STCV09571 23STCV09571

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Case Number: 23STCV09571 Hearing Date: August 5, 2026 Dept: 514

Doris v. Baldwin Hills Multifamily, LLC

23STCV09571

Defendant's Motion to Compel Plaintiff Katia Rubio to Respond to Form
Interrogatories (Set One)

Defendant's Motion to Compel Plaintiff Katia Rubio to Respond to Requests for
Production (Set One)

Tentative Ruling

The motions are granted.

The requests for sanctions are granted in
part.

Background

This case arises out of the rental of
residential premises.

The complaint in this action was filed on
April 28, 2023. In the operative
complaint, the Third Amended Complaint filed on August 19, 2024, 64 plaintiffs
assert various causes of action (20 in total) against 19 named defendants (some
of whom have subsequently been dismissed) and Does 1 through 100.

Currently

before the Court and set for hearing on August 5 are two discovery motions, both filed on June 17, 2026, by Defendant Baldwin Hills Multifamily, LLC ("Baldwin"):

(1) Baldwin's Motion to Compel Plaintiff Katia Rubio to Respond to Form Interrogatories (Set One); and (2) Baldwin's Motion to Compel Plaintiff Katia Rubio to Respond to Requests for Production (Set One). In each motion, Baldwin seeks monetary sanctions.

No opposition has been filed.

Trial is set for November 30, 2026.

Legal Standard

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd.(a).) If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (Code Civ. Proc., § 2030.290, subd. (b).) There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.) Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1).) In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a).)

When a party moves to compel initial responses to interrogatories, "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c).)

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd.(a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling response to the demand. (Code Civ. Proc., § 2031.300, subd. (b).) There is no

time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See Code Civ. Proc., § 2031.300; Sinaiko Healthcare Consulting, Inc., supra, 148 Cal.App.4th at p. 411.) Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1).) In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2031.300, subd. (a).)

When a party moves to compel initial responses to requests for production, “the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).)

In Chapter 7 of the Civil Discovery Act, Code of Civil Procedure section 2023.010, subdivision (d), defines “[m]isuses of the discovery process” to include “[f]ailing to respond to or to submit to an authorized method of discovery.” Where a party or attorney has engaged in misuse of the discovery process, the court may impose a monetary sanction in the amount of “the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.020, subd. (a).)

Discussion

On February 10, 2026, Baldwin served Plaintiff Katia Rubio with Form Interrogatories (Set One) and Requests for Production (Set One). (Webber Decls., ¶ 9 & Exhs. D.) Plaintiff Katia Rubio has not served any responses to either the interrogatories or requests for production. (Webber Decls., ¶¶ 11, 14.)

Defendant Baldwin need not show anything more. The motions to compel are granted.

The requests for monetary sanctions are granted in part. In light of the straightforward nature of these motions and the economies of scale associated with preparing multiple, parallel discovery motions, the Court sets sanctions on each motion in the amount of \$472.50, based on 1.5 hours of attorney time multiplied by counsel's billing rate of \$275 per hour, plus a \$60 filing fee. (See Webber Decls., ¶ 15.)

Conclusion

The Court GRANTS the motions of Defendant Baldwin Hills Multifamily, LLC to compel Plaintiff Katia Rubio to respond to Form Interrogatories (Set One) and Requests for Production of Documents (Set One).

The Court GRANTS IN PART Defendant's request for sanctions.

The Court ORDERS Plaintiff Katia Rubio to serve code-compliant verified written responses, without objections, to Defendant's Form Interrogatories (Set One) by September 4, 2026.

The Court ORDERS Plaintiff Katia Rubio to serve code-compliant verified written responses, without objections, to Defendant's Requests for Production (Set One) by September 4, 2026.

The Court ORDERS Plaintiff Katia Rubio to pay monetary sanctions under the Civil Discovery Act in the total amount of \$945.00 (\$472.50 per motion, multiplied by two motions) to Defendant Baldwin Hills Multifamily, LLC (through counsel) by September 4, 2026.

The Court ORDERS counsel for Defendant Baldwin Hills Multifamily, LLC to give notice and file proof of service of notice with the Court by no later than August 10, 2026.